

16. 9:00 AM CASE NUMBER: C24-02020
CASE NAME: BRANDON VARISE VS. MARZBAN RAD
*HEARING ON MOTION IN RE: SET ASIDE ENTRY OF DEFAULT
FILED BY: RAD, MARZBAN

TENTATIVE RULING:

Defendant Marzban Rad filed a Notice of Appeal. This case is stayed pending appeal. This hearing is off calendar.

17. 9:00 AM CASE NUMBER: C25-00276
CASE NAME: CHRISTOPHER SEARS, PHD VS. VIVIANE SIINO, PHD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SIINO, VIVIANE, PHD

TENTATIVE RULING:

Defendant Vivanne Siino, Ph.D's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff has 20 days from notice of entry of order on this ruling to file and serve a second amended complaint.

Plaintiff Christopher Sears, Ph.D. is suing for libel based upon statements that Plaintiff made to third parties, including family members and Plaintiff's professional contacts. Previously the Court sustained Defendant's demurrer to this cause of action with leave to amend. Defendant now demurs to the first amended complaint, arguing that it does not state sufficient facts for a valid cause of action.

Allegations

Here Plaintiff is suing for libel and alleges that Defendant made the following defamatory statements regarding financial abuse and child abuse.

The financial abuse allegations are that Defendant had to open a secret bank account to hide money from Plaintiff and that when Plaintiff discovered the account, he hit Defendant several times. (FAC ¶¶8-9.) In discovery in a related proceeding, this account was identified as a Bank of America checking account x2406. (FAC ¶8.)

The child abuse allegations are that Plaintiff hit one of the parties' children twice on the head, grabbed her by the shoulders and lifted her off the chair and then shoved her onto a chair, pushing down against her shoulders. (FAC ¶10.)

Plaintiff alleges that, on information and belief, these statements were published to third parties, including Defendant's brothers Marc, Frank, Dan and other family members, and to one or more non-family recipients. (FAC ¶¶11-12.)

As to falsity, Plaintiff alleges that the financial statements are false because there is no Bank of America checking account x2406 and that the family court found there was no coercive control and rejected the "secret account" testimony for lack of specifics. (FAC ¶¶13, 14.) As to the child abuse statements, Plaintiff alleges that the family court made findings regarding Plaintiff's conduct, including

that the treatment of the child was “corrective behavior and discipline and not abuse” and that the child was not believable. (FAC ¶14.)

Plaintiff alleges that these statements of abuse reached third parties in Plaintiff’s family and social circles and that he suffered general damages, including injury to reputation, humiliation, shame, mortification, hurt feelings, mental anguish, and emotional distress. (FAC ¶16.)

Analysis

Defamation includes both libel and slander. (Civil Code section 44.) “ ‘ “The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage.”’ [Citations.] ‘In general, ... a written communication that is false, that is not protected by any privilege, and that exposes a person to contempt or ridicule or certain other reputational injuries, constitutes libel.’ [Citation.]” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1259-1260.)

Defendant argues that Plaintiff has not sufficiently alleged publication, falsity and damages.

Publication

Defendant argues that Plaintiff has alleged publication “on information and belief” but without alleging facts that would lead Plaintiff to believe the allegations are true. “A ‘ “[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, *if he has information leading him to believe that the allegations are true*” ’ [citation], and thus a pleading made on information and belief is insufficient if it ‘merely assert[s] the facts so alleged without alleging such information that “lead[s] [the plaintiff] to believe that the allegations are true” ’ [Citation.]” (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159.)

In opposition, Plaintiff points to a statement in Defendant’s meet and confer email where the attorney stated that publication was specifically pled as to the email to brother Marc. That statement did not address the “information and belief” allegations, which was raised elsewhere in the meet and confer.

Here, Plaintiff has alleged publication based upon information and belief, but did not allege what facts caused him to have this belief. The demurrer is therefore **sustained** with leave to amend on this ground.

Defendant also argues that Plaintiff has alleged that the statements were sent to non-family recipients, but have not alleged who those recipients are, nor what exactly was stated in the emails or how they were sent. Most of this information is available through discovery and the Court does not believe that Plaintiff is required to provide the exact details of every email that is alleged to have been sent out in his complaint.

Falsity

Defendant argues that Plaintiff has not alleged that the statements were false and if only a small portion of the statement is shown to be false that statement must also be defamatory to be

actionable.

Both sides argue about what happened in the DVRO hearing in family court and what findings that court made. On demurrer, the Court is not going to engage in a detailed analysis of what exactly was found in the family court proceeding and whether Plaintiff's or Defendant's characterization of that proceeding is more accurate. Rather the question here is whether Plaintiff has alleged that the statements are false.

As to the financial allegations, Plaintiff alleges that the account information was false, but does not alleged that the remainder of the statement was false. Thus, Plaintiff fails to allege that the claim that he hit Defendant is false. A false reference to a specific kind of bank account, such as Bank of America checking x2406, is not defamatory in this context. Thus, Plaintiff must show that some other portion of the statement regarding the financial abuse is false in order to state a claim for libel.

As to the child abuse allegations, Defendant argues that the allegations of falsity are based upon the court's findings and do not include allegations that the conduct did not occur. Here, Plaintiff has failed to allege that he did not hit his child, only that the family court found it was not abuse. Such an allegation is insufficient to allege falsity of Defendant's statement.

Therefore, the demurrer is sustained with leave to amend for Plaintiff to allege that at least one of the defamatory statements was false.

Damages

Defendant argues that Plaintiff has not alleged facts showing that the defamatory statements caused him injury.

Previously, Plaintiff had not alleged the statements with sufficient particularity, so it was unclear if they were libelous on their face. In the prior demurrer the Court analyzed whether Plaintiff had alleged special damages because it was not clear if there would be assumed damages. The Court then sustained with leave to amend for Plaintiff to either allege his special damages with sufficient particularity or allege a statement that is libelous on its face.

In amending his complaint, Plaintiff provided details on the alleged statements, and the Court finds that allegations that Plaintiff hit Defendant and/or his child are libelous on their face. Since Plaintiff has now alleged statements that are libelous on their face, damages are assumed and thus, it is sufficient for Plaintiff to allege that he was damaged. The demurrer on this ground fails.

Defendant also demurs arguing that facts showing republication are insufficient. Here, Defendant is alleged to be the original defamer and is not being sued for republication of another's statements, but for making her own statements. The demurrer on this ground fails.